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California Publishes Legislative Intent To Push Compliance Date For VCMDA

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As expected,

California's Assembly Daily Journal has just published a letter

of legislative intent regarding the compliance date for

California's new Voluntary Carbon Market

Disclosures Act.

The new law (which requires advertisers to include specific

disclosures on their websites when making certain types of carbon

emissions claims) took effect on January 1, 2024. But, at the end

of 2023, the bill's sponsor, Assembly Member Jesse Gabriel,

explained in a letter that his

intent was that the first set of required disclosures would

actually be posted by January 1, 2025. He noted

that he intended to submit a formal letter indicating that intent

when the California Assembly reconvened. That letter has just been

published (available here, on page 3766)

with a note that unanimous consent was granted to publish this

statement of legislative intent:

"I write to express my intent in authoring Assembly

Bill (AB) 1305 related to voluntary carbon offsets. AB 1305 will

impose disclosure obligations on certain covered entities that

operate in California and make certain claims regarding their

climate objectives. While the bill does not specify the date on

which the first set of disclosures must be posted to a

company's internet website, it was my intent that the first annual disclosure be posted by January 1, 2025. This deadline provides reporting entities with sufficient time to align their business practices with the stated objectives of AB 1305 prior to being subject to potential civil fines. Thank you for the opportunity to clarify the intent of AB 1305."

As we've noted in prior posts, these types of letters are apparently often used in California to express legislative intent.

So, while many marketers have been scurrying to get their VCMDA disclosures up on their websites, they now seemingly have some extra time to do so.

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